

ANNEX.

DOCUMENTS SUBMITTED TO THE COURT.

I.—DOCUMENTS FILED ON BEHALF OF THE HUNGARIAN GOVERNMENT
(APPLICANT).**Preliminary objection.***A.—In the written proceedings :*

1. Peace Treaty concluded with Hungary and signed at Trianon on June 4th, 1920 (Art. 250).
2. Judgment of the Hungaro-Yugoslav M. A. T. dated April 21st, 1933, in the case of Dr. Jules Pajzs and his wife *v. the Agrarian Fund* (No. 733).
3. Judgment of the Hungaro-Yugoslav M. A. T. dated April 21st, 1933, in the case of Countess Felix Csáky *v. the Agrarian Fund* (No. 735).
4. Judgment of the Hungaro-Yugoslav M. A. T. dated April 21st, 1933, in the case of Prince Paul Esterházy *v. the Agrarian Fund* (No. 734).
5. Judgment of the Hungaro-Yugoslav M. A. T. dated July 22nd, 1935, in the case of Jules Pajzs and his wife, *née* Anne Bischitz, *v. the Yugoslav State* (No. 749).
6. Judgment of the Hungaro-Yugoslav M. A. T. dated July 22nd, 1935, in the case of Countess Felix Csáky, *née* Elisabeth Fernbach, *v. the Yugoslav State* (No. 750).
7. Judgment of the Hungaro-Yugoslav M. A. T. dated July 22nd, 1935, in the case of Prince Paul Esterházy *v. the Yugoslav State* (No. 747).
8. Dissenting opinion, signed on July 22nd, 1935, by the neutral judge, M. J. A. van Hamel, in the case of Dr. Jules Pajzs *v. the Yugoslav State* (No. 749).
9. Dissenting opinion, signed on July 22nd, 1935, by the neutral judge, M. J. A. van Hamel, in the case of Countess Felix Csáky, *née* Elisabeth Fernbach, *v. the Yugoslav State* (No. 750).
10. Dissenting opinion, signed on July 22nd, 1935, by the neutral judge, M. J. A. van Hamel, in the case of Prince Paul Esterházy *v. the Yugoslav State* (No. 747).
11. Dissenting opinion of the Hungarian national judge, M. A. Székács, in the cases of Prince Paul Esterházy (No. 747), Jules Pajzs and his wife (No. 749), and Countess Felix Csáky, *née* Elisabeth Fernbach (No. 750), *v. the Yugoslav State*.
12. Dissenting opinion of the Roumanian judge, rendered in connection with the judgments of the Roumano-Hungarian M. A. T. affirming its jurisdiction in the cases relating to the agrarian reform.
13. Dissenting opinion of the Czechoslovak judge, rendered in connection with the judgments of the Hungaro-Czechoslovak M. A. T. affirming its jurisdiction in the cases relating to the agrarian reform.
14. Dissenting opinion of the Yugoslav judge, rendered in connection with the judgments of the Hungaro-Yugoslav M. A. T. affirming its jurisdiction in the cases relating to the agrarian reform.
15. Protocols, minutes and decisions concerning the methods of assessment to be employed in fixing the indemnities to be paid to Hungarian applicants in agrarian cases, which methods have been adopted by the Managing Commission of the Agrarian Fund and by the Roumano-Hungarian, Hungaro-Czechoslovak and Hungaro-Yugoslav M. A. T.

16. Notes exchanged between the Royal Government of Hungary and the Royal Government of Yugoslavia concerning the fulfilment of the mandate received by them from the Conference of Paris in Article XVI of Agreement II, April 28th, 1930.
17. List giving the names of a number of Hungarian nationals interested in the case pending before the Permanent Court of International Justice.

B.—At the oral proceedings:

1. Complete text of the Paris Agreements of April 28th, 1930.
2. Applications filed with the Hungaro-Yugoslav M. A. T. in the Pajzs case, on December 21st, 1931, and October 18th, 1933 (with annexes).
3. Rules of Procedure of the Hungaro-Yugoslav M. A. T. (Oct. 3rd, 1924, and Aug. 4th, 1931).
4. Rules of Procedure of the Hungaro-Yugoslav M. A. T. for agrarian cases (Aug. 4th, 1931).
5. Yugoslav law of June 19th, 1931, concerning the liquidation of the agrarian reform on the large estates (*French translation*).
6. Yugoslav law concerning the *Douzièmes provisoires* (1925); Article 38 (*French translation*).
7. Yugoslav financial law for the years 1926-1927; Article 150 (*French translation*).

Continuation of the proceedings.

A.—In the written proceedings:

1. *Chambre des Députés* of the French Parliament. Session of 1931. Report by M. Loucheur, Deputy, on behalf of the Committee for Foreign Affairs upon the Bill for the approval of the various Agreements concluded in Paris on April 28th, 1930, for the complete and final settlement of the obligations resulting from the Treaty of Trianon.
2. Twenty-eight applications filed in connection with the agrarian reforms before the Roumano-Hungarian, Hungaro-Czechoslovak and Hungaro-Yugoslav M. A. T., and serving as a basis for the decisions concerning jurisdiction in these cases.
3. Three judgments of the Roumano-Hungarian, Hungaro-Czechoslovak and Hungaro-Yugoslav M. A. T. affirming their jurisdiction in the so-called agrarian cases of Hungarian nationals.
4. Fifty-seven applications filed with the Hungaro-Yugoslav M. A. T. by Hungarian nationals in regard to the agrarian reforms.
5. Fifty-seven judgments rendered by the Hungaro-Yugoslav M. A. T. concerning the responsibility of the Agrarian Fund brought in regard to the agrarian reforms; judgments allowing the petitioners' claims against the Agrarian Fund; judgments dismissing the petitioners' claims against the Agrarian Fund.
6. Case not yet decided (extract from the Application).
7. Yugoslav Ordinances, Decrees, Decree-Laws and Decisions concerning the agrarian reform, promulgated before June 19th, 1931 (*French translation*).
8. Some examples of decisions or other acts dating from well before June 19th, 1931, taken by the Yugoslav authorities involving agrarian measures determining the dates as from which the time-limits for the filing of applications will begin to run (*French translations*).
9. Answer of the Agent of the Agrarian Fund containing an objection to the effect that the so-called cases of the first series are out of time.
10. Collection entitled: "Agreements concerning the obligations resulting from the Treaty of Trianon, signed at Paris on April 28th, 1930" (Budapest, The Athenæum Press).
11. Documents "concerning the methods of summary assessment not reproduced in the Annex IX/1-4 of the Memorial" of the Hungarian Government:

- (a) Report to the Managing Commission of the Agrarian Fund by the Hungarian member on the subject of the methods for the assessment of agrarian compensation, to be laid down under paragraph 2 of Article VIII of Paris Agreement II.
 - (b) Preliminary expert report concerning the valuation of agricultural property belonging to Hungarian nationals and situated in territory transferred under the Treaty of Trianon from Hungary to Roumania, Yugoslavia and Czechoslovakia.
 - (c) Expert report on the valuation of immovable property.
 - (d) Report by M. Borel, neutral expert, on the report of the Hungarian experts.
 - (e) Exchange of views upon one of the questions—deprivation of enjoyment—in regard to which a jurisprudence is already growing up in the Roumano-Hungarian M. A. T.
 - (f) Jurisprudence of the Roumano-Hungarian M. A. T. (case of T. Beliczay v. the Agrarian Fund).
 - (g) Revised jurisprudence of the Roumano-Hungarian M. A. T.
 - (h) Survey of the procedure in regard to the valuation of forests.
 - (i) Expert report on the valuation of forests.
 - (j) Memorandum on the method of procedure for the valuation of forests.
 - (k) Minutes of the Roumano-Hungarian M. A. T. regarding the interpretation of the expert report on forests.
12. Work in two volumes, entitled: *Bericht über die Tätigkeit der Deutsch-österreichischen Friedensdelegation in St. Germain-en-Laye*.
 13. French *Official Journal*, issue of March 25th, 1931. Parliamentary debates, No. 52, verbatim report of the *Chambre des Députés*, 1st and 2nd meetings on March 24th, 1931 (speech delivered by M. Loucheur, Deputy).
 14. Collection of documents of the Hungarian Parliament concerning the "Bill for the inclusion among the laws of Hungary of the agreements concerning the obligations resulting from the Treaty of Trianon".
 15. Work entitled "*Les lois roumaines de réforme agraire devant le T. A. M. roumano-hongrois. Quelques types d'affaires. Mémoires déposés par les différentes parties en cause relativement à l'exception d'incompétence soulevée par l'État roumain.*" (Printed at Paris.)
 16. Pierre Jousse: *Les tendances des réformes agraires dans l'Europe centrale, l'Europe orientale et l'Europe méridionale* (1918-1924) (1 vol.).
 17. Milan Ivšić: *Les problèmes agraires en Yougoslavie* (1 vol.).
 18. Tchédomir Srebrenko-Dolinski¹: *La réforme agraire en Yougoslavie* (1 vol.).

B.—At the oral proceedings :

1. Document supplementing the application filed on December 21st, 1931, under No. 733, with the Hungaro-Serb-Croat-Slovene M. A. T. by Dr. Jules Pajzs and his wife against the Agrarian Fund (with annexes).
2. Decree of the Yugoslav Ministry for Agrarian Reform concerning the optional sale of large estates, dated October 8th, 1925 (*French translation*).
3. Twenty-five applications² filed with the Hungaro-Serb-Croat-Slovene M. A. T. by Hungarian nationals against the Serb-Croat-Slovene State.
4. Extracts from the *Budapesti Közlöny* of August 11th, 1935 (notes from the Managing Commission of the Agrarian Fund to the Hungarian Government, Oct. 17th 1934, and July 24th, 1935).
5. Extracts from more recent publications of the Agrarian Fund, i.e. of April 30th, 1936

¹ A certain number of legal documents concerning the agrarian reform in Yugoslavia are reproduced in this work.

² To each application is appended the document indicating the action taken upon it: judgment, order recording and confirming a settlement, or recording the discontinuance of proceedings.

6. Decision of the Yugoslav Minister for Agriculture (June 25th, 1932).
7. Application Esterházy *v.* Yugoslav State (case No. 747; June 15th, 1933) (with annexes).
8. Application Csáky *v.* Yugoslav State (case No. 750; Oct. 19th, 1933) (with annexes).
9. "Annexes to the Csáky case", No. 735 (Dec. 28th, 1931).
10. "Annexes to the Esterházy case", No. 734 (June 24th, 1932).

II.—DOCUMENTS FILED ON BEHALF OF THE YUGOSLAV GOVERNMENT
(RESPONDENT).

Preliminary objection.

A.—In the written proceedings :

1. Judgment of the Hungaro-Yugoslav M. A. T. dated January 23rd, 1934, in the case of Count and Countess Sigismund de Batthyány *v.* the Agrarian Fund (No. 732).
2. Extract from the temporary measures having the force of law preparatory to the agrarian reform, dated February 25th, 1919 (Art. 9; *French translation*).
3. Extract from the decree of July 27th, 1919 (ratified by the law of May 20th, 1922) on the inalienability and exemption from seizure of large landed estates (Art. 1; *French translation*).
4. Extract from the decree of February 12th, 1920 (ratified on June 4th, 1922) concerning the carrying out of the expropriation of lands belonging to the large estates in the general interest, their colonization and the construction of dwellings and of gardens for workmen and officials (Arts. 1, 3 and 13; *French translation*).
5. Extract from the law regarding the liquidation of the agrarian reform on the large estates, dated June 19th, 1931 (para. 61; *French translation*).
6. Decision in third instance of the Minister of Agriculture, No. 38,820/Via/32, dated June 25th, 1932, concerning the expropriation of the property of the Hungarian national Dr. Jules Pajzs (*French translation*).

B.—At the oral proceedings :

1. Yugoslav decree of September 3rd, 1920, which became the law of May 20th, 1922, on the leasing of the landed estates on four-year leases (*French translation*).
2. Objection lodged on April 2nd, 1934, by the Yugoslav Government against the application filed in the case of Prince Paul Esterházy *v.* the Yugoslav State (No. 747).

Continuation of the proceedings.

At the oral proceedings :

1. Yugoslav law of May 27th, 1930, concerning the ratification of the Paris Agreements (*French translation*).
2. Extract from the decree of July 27th, 1919, ratified on May 20th, 1922, concerning the inalienability and exemption from seizure of the large landed estates (Art. 2; *French translation*).